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Robert Rios v. Burro Canyon

Enterprises, Inc. et al., Case No. 23PSCV01740

ORDER ON MOTION

FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

1. Defendants Jose Manuel Lopez, Melissa

Lopez, and Theodore Lopez's Motion for Summary Judgment is DENIED.

2. Defendants Jose Manuel Lopez, Melissa

Lopez, and Theodore Lopez's Motion for Summary Adjudication to Plaintiff's First Cause of Action for Premises Liability is MOOT.

3. Defendants Jose Manuel Lopez, Melissa

Lopez, and Theodore Lopez's Motion for Summary Adjudication to Plaintiff's Second Cause of Action for Negligence is DENIED.

Background

Plaintiff

Robert Rios ("Plaintiff") alleges that while at Burro Canyon Shooting Park with Defendant Manual Lopez, Manual Lopez's gun exploded, causing injury to Plaintiff.

On June

9, 2023, Plaintiff filed a complaint

asserting causes of action against Burro Canyon Enterprises, Inc., Burro Canyon Shooting Park, Joseph M. Cavanaugh ("J. Cavanaugh"), Deborah M. Cavanaugh ("D. Cavanaugh"), J. Lopez, and Does 1-50 for: (1) General Negligence and (2) Premises

Liability.

On

November 16, 2023, Defendants Burro Canyon Enterprises, Inc., dba Burro Canyon Shooting Park, Joseph M. Cavanaugh, and Deborah M. Cavanaugh answered the complaint, and filed a cross-complaint against Jose Manuel Lopez for Implied Indemnity, Comparative Contribution, Total Equitable Indemnity, Apportionment, and Declaratory Relief. On July 9, 2024, Lopez answered both the complaint and cross-complaint.

On June

3, 2025, Rios substituted in Melissa Lopez and Theodore Lopez for Does 31 and 32.

On June

20, 2025, the Court entered the stipulated settlement between Plaintiff and Burro Canyon Enterprises, Inc., dba Burro Canyon Shooting Park, Joseph M. Cavanaugh, and Deborah M. Cavanaugh. On July 14 and 15, 2025, Plaintiff dismissed the settling defendants.

On

December 5, 2025, Melissa Lopez and Theodore Lopez, answered the complaint.

On May

7, 2026, the Court continued the trial from June 30, 2026, to October 20, 2026.

Legal Standard

The

pleadings frame the issues for motions, “since it is those allegations to which the motion must respond.” (Scolinos v. Kolts (1995)

37 Cal.App.4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-383; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29

Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or

summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations,

trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c,

subdivision (c), requires the trial judge to grant summary judgment if all the

evidence submitted, and ‘all inferences reasonably deducible from the evidence’

and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Id.)

“A party may move for summary adjudication as to one or more causes of action within an action... or one or more issues of duty if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inference that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1014

(citation omitted).)

Discussion

Defendants

Jose Manuel Lopez, Melissa Lopez, and

Theodore Lopez move for summary judgment, or, in the alternative, summary adjudication as to the causes of action for premises liability and negligence. Defendants present five separate issue statements as to the negligence cause of action.

ISSUE

NO 1: Defendants are entitled to summary adjudication on the first cause of action for “premises liability” because there is no triable issue of material fact with respect to whether Defendants owned, controlled or managed the subject premises.

ISSUE

NO 2: Defendants are entitled to summary adjudication on the first cause of action for “negligence” because there is no triable issue of material fact with respect to whether Defendants owed a duty to Plaintiff given the “primary assumption of the risk” doctrine.

ISSUE

NO 3: Defendants are entitled to summary adjudication on the first cause of action for “negligence” because there is no triable issue of material fact with respect to whether Defendants owed a duty to Plaintiff as Defendants did not increase the risk of harm associated with a gun range/shooting range activity.

ISSUE

NO 4: Defendants are entitled to summary adjudication on the first cause of action for “negligence” because there is no triable issue of material fact with respect to whether Defendants owed a duty to Plaintiff as the incident was not foreseeable.

ISSUE

NO 5: Defendants are entitled to summary adjudication on the first cause of action for “negligence” because there is no triable issue of material fact with respect to whether any act or omission on the part of Defendants caused or contributed to the subject incident or Plaintiff's injuries.

Notwithstanding

the five issue statements, Defendants summarize their challenge to the complaint on three grounds: “(1) Plaintiff assumed all risks and dangers of harm associated with the shooting of firearms, including being struck; (2) no act or omission on the part of Defendants increased the risk of harm associated with the activity; (3) the subject gun had never previously misfired; and (4) the ‘explosion’ was not foreseeable.”

Premises

Liability

Defendants challenge the premises liability claim on grounds that Defendants never owned, controlled, or managed the premises. Plaintiff in opposition notes that Defendants are not named parties in the premises liability cause of action. The motion for summary adjudication as to the first cause of action for premises liability is therefore denied as moot.

Negligence

“The elements of a negligence cause of action are the existence of a legal duty of care, breach of that duty, and proximate cause resulting in injury. The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages.” (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.)

Defendants

represent that Melissa Lopez fired the gun, Theodore Lopez owned the gun, and Jose Lopez “borrowed” the guns to take Melissa Lopez shooting. The crux of the motion involves the existence and determination of the scope of duty, the existence of any affirmative defense, and causation.

Primary

Assumption of Risk

At the

outset, Plaintiff argues there is no executed agreement supporting express assumption of risk, and Defendants offer none. The Court therefore declines to consider any defense under express assumption of risk. (Sweat v. Big Time Auto Racing, Inc. (2004) 117 Cal.App.4th 1301, 1304-05; Benedek v. PLC Santa Monica, LLC (2002) 104 Cal.App.4th 1351, 1357-1359; Von

Beltz v. Stuntman, Inc. (1989) 207 Cal.App.3d 1467.)

Defendants

instead rely on primary assumption of risk doctrine, under which no duty exists for inherent risks of a recreational activity. (Knight v. Jewett (1992) 3 Cal.4th 296, 314-315.) Duty turns on the nature of the activity and the parties' relationship to it, not the plaintiff's conduct. (Kahn v. East Side Union High School Dist. (2003) 31 Cal.4th 990, 1004; Avila v. Citrus Community College Dist. (2006) 38 Cal.4th 148, 161.) Courts evaluate the fundamental nature of the activity and the defendant's role and avoid imposing duties that would alter or chill participation. (Rosencrans v. Dover Images, Ltd. (2011) 192 Cal.App.4th 1072, 1082–1083.)

Even assuming shooting is inherently dangerous, the issue is whether Defendants increased that danger. Defendants provide no evidence confirming or ruling out defects in the firearm and instead deny the use of reloads. Jose Lopez states he borrowed the .357 Kimber from Theodore Lopez and used ammunition supplied by Theodore. (Ex. G: Jose Lopez Depo. 15:3-14; 27:4-20; 28:1-12.) Theodore Lopez claims he purchased only new ammunition and never used reloads due to safety concerns. (Ex. I: Theodore Lopez Depo. 19:17-20:6; 21:8-22; 36:2-6.)

Range

safety officer Marc Trummel concluded the explosion resulted from an overloaded handload and testified that users cannot reliably distinguish factory ammunition from reloads. He could not confirm that the specific round was overloaded. (Ex. E: Trummel Depo. 35:6-17; 46:24-47:18; 63:5-10; 64:17-23; 66:7-13.) Pollard and Trummel testified that reloads are not inherently dangerous, and the range permits them. (Ex. F: Pollard Depo. 14:6-8; 43:2-4.)

Overloaded

reloads, however, present a serious risk to shooters and nearby patrons. While properly made reloads are safe, improperly constructed ones pose significant dangers, and users cannot distinguish them from new rounds. Plaintiff points to testimony that Theodore Lopez may have received reloads from other shooters, and reloads were present in the ammunition box. (Ex. 1: Theodore Lopez Depo. 36:22-37:8; 25:20-25.)

All ammunition used that day came from Theodore Lopez. (Ex. 2: Jose Lopez Depo. 15:7-11; Ex. 3: Melissa Lopez Depo. 13:3-8;

17:21-24.)

Pollard observed signs of reloads in the remaining ammunition. (Ex. 5: Pollard Depo. 23:5-9;

25:3-14;

26:2-27:14;

48:8-17.)

Trummel confirmed a suspected reload through testing and observation. (Ex. 6:

Trummel Depo. 23:12-13;

24:18-24;

26:5-20;

27:1-29:25;

31:25-32:21;

35:6-36:23;

38:14-39:10;

56:22-57:10.)

Although

the Court cannot conclusively determine reload use, the circumstantial evidence permits a reasonable jury finding that Theodore Lopez placed reloads in the box used by Melissa and Jose Lopez. Because Defendants' denial is unsupported, they fail to shift the burden.

Defendants

also fail to establish that reload use is an inherent, assumed risk for nearby patrons. Even if they had shifted the burden, the record shows triable issues over whether Defendants increased the risks and owed Plaintiff a duty. (Depositions of Theodore, Jose, Melissa, Trummel, Pollard)

Foreseeability

Defendants

rely on landlord liability case law regarding third party conduct and known propensities in order to dispel any notion of foreseeability. (Castaneda v. Olsher (2007) 41 Cal.4th 1205, 1213; Vasquez v. Residential Investments, Inc. (2004) 118 Cal.App.4th 269, 285; see Rinehart v. Boys & Girls Club of Chula Vista (2005) 133 Cal.App.4th 419, 431.)

"The proper focus is

on the foreseeability of a harmful event of the general type that occurred. The relevant foreseeability is not the foreseeability of the particular and possibly unique details of how and why a particular harmful event came to pass.” (Robison v. Six Flags Theme Parks Inc. (1998) 64 Cal.App.4th 1294, 1297.) “Conduct is negligent where some unreasonable risk of danger to others would have been foreseen by a reasonable person.” (Id. at p. 1304.)

Even though the gun range permits reloads, Theodore Lopez's testimony acknowledging disliking reloads due to safety concerns (and thus acknowledging the risks associated with reloads), coupled with evidence that the box contained reloads, creates triable issues about whether the incident was foreseeable. An overloaded casing can foreseeably cause a firearm explosion and injury to nearby participants. Defendants therefore fail to negate foreseeability as a matter of law.

Causation

Defendants

argue there is no proof that an overloaded round caused the explosion. “On the issue of the fact of causation, as on other issues essential to the cause of action for negligence, the plaintiff, in general, has the burden of proof. The plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant.” (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1205–1206.)

Here,

the evidence does not conclusively rule out the presence of an overloaded round, and witnesses testified regarding signs of reloads in the ammunition used. Plaintiff has provided sufficient circumstantial evidence to create a triable issue on causation.

Penal

Code Section 27880

In Plaintiff's

opposition, Plaintiff involves California Penal Code section 27880, which forbids the lending of a handgun to anyone other than a parent, child, sibling, grandparent, or grandchild. However, because this statute was not pled as a basis for liability in the complaint, the Court declines to consider it. (*Scolinos v. Kolts*, supra, 37 Cal. App. 4th at pp. 640-641; *FPI Development, Inc. v. Nakashima*, supra, 231 Cal.App.3d at pp. 382-383; *Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp.*, supra, 29 Cal.App.4th at p. 1472.)

Conclusion

The motion

for summary judgment or, in the alternative, summary adjudication, is DENIED.